NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, BENCH - II

C.A.(CAA)76/ND/2020

IN THE MATTER OF SCHEME OF AMALGAMATION :

ASHA KIRAN NETWORK PRIVATE LIMITED
(Applicant No.1/Transferor Company)

AND

BAGRI CONSTRUCTION PRIVATE LIMITED
(Applicant No.2/Transferor Company)

AND

CATVISION COMMUNICATION PRIVATE LIMITED
(Applicant No.3/Transferor Company)

AND

SHRESHTH LOGISTICS PRIVATE LIMITED
(Applicant No.4/Transferor Company)

AND

DHARTI OIL SERVICES PRIVATE LIMITED
(Applicant No.5/Transferor Company)

WITH

AMIT LUBRICANTS PRIVATE LIMITED
(Applicant No.6/Transferee Company)

Order Delivered on 25.09.2020

Section: 230 to 232 of the Companies Act, 2013

CORAM

CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

SHRI L.N. GUPTA, MEMBER (TECHNICAL)

PRESENT
For Applicant : Mr. Palash Agarwal, Advocate and CS Mr. Neeraj Arora

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. CA(CAA) 76/ND/2020 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding of the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies.

2. That Asha Kiran Network Private Limited (hereinafter referred to as the "Transferor Company No. 1)" having CIN No. - U51909DL2003PTC120227) is a Company incorporated under the provisions of the Companies Act, 1956 on 07th day of May, 2003.The registered office of the Transferor Company No. 1 is situated at W-15J/3, Lanej-238, Western Avenue, Sainik Farms, New Delhi-110062.

3. That Bagri Construction Private Limited(hereinafter referred to as the "Transferor Company No. 2") having CIN No. - U74899DL1984PTC017523 is a Company incorporated under the provisions of the Companies Act, 1956 on 13th day of February, 1984 Registrar of Companies, NCT of Delhi & Haryana., The registered office of the Transferor Company No. 2 is situated at W-15J/3, Lanej-238, Western Avenue, Sainik Farms, New Delhi-110062.

4. That Catvision Communication Private Limited (hereinafter referred to as the 'Transferor Company No. 3') having CIN No. - U74899DL1995PTC071182 is a Company incorporated under the provisions of the Companies Act, 1956 on 27th day of July, 1995. The Transferor Company No. 3 is having its registered office at Millennium Business Centre, 34, Corner Market, 2ndFloor, Cabin No.8, Malviya Nagar, New Delhi-110017.

5. That Shreshth Logistics Private Limited (hereinafter referred to as the "Transferor Company No. 4") having CIN No. U63090DL2003PTC119422) is a Company incorporated under the provisions of the Companies Act, 1956 on 17th day of March, 2003, the Transferor Company No. 4 is having its registered office at Millennium Business Centre, 34, Corner Market, 2ndFloor, Cabin No.8, Malviya Nagar New Delhi-110017.

6. That Dharti Oil Services Private Limited(hereinafter referred to as the "Transferor Company No. 5") having CIN No. - U74140DL2000PTC107728is a Company incorporated under the provisions of the Companies Act, 1956 on 14th day of September, 2000 the Transferor Company No. 5is having its registered office at PVT Shop No.-102, F/F, Prop No.-779/6, KH No.- 1151/3 Gali Doodh Wali, Main Bazar, Mehrauli, New Delhi-110030.

7. That Amit Lubricants Private Limited (hereinafter, referred to as the "Transferee Company") having CIN No. U51410DL1996PTC081031, is a Company incorporated under the provisions of the Companies Act, 1956 on 08th day of August, 1996. The registered office of the Transferee Company is situated at W-15J/3, Lanej-238, Western Avenue, Sainik Farms, New Delhi - 110062.

8. That the Present Petition has been preferred jointly by all the Transferor Companies and Transferee Company. All the 'Transferor Companies' and 'Transferee Company' together are called the 'Applicant Companies' hereinafter. That the Registered offices of all the Companies being in Delhi, the jurisdiction lies with this Bench.

9. It is seen that the Board of Directors of the Applicant Companies vide separate meetings held on 10.03.2020 had approved the Scheme of Amalgamation.

10. That the Applicant Companies have filed their Affidavits on 16.09.2020 in compliance of the Section 230(2)(a) of Companies Act 2013 submitting therein that the Applicant Companies are not under any prosecution/investigation/inquiry under the Companies Act 2013.

11. That the Applicants Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting standards are in conformity with the provisions of Section 133 of the Companies Act 2013.

12. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheet as on 31.03.2019.

13. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below :

Company	No. of Share holders	Percentage of Share holders given consent	No. Of Secured Creditors	Percentage of Secured Creditors given consent	No. Of Unsecured Creditors	Percentage of Unsecured Creditors given consent
Asha Kiran Network Private Limited Applicant/ Transferor Company No.1	4	100%	Nil	Not Applicable	2	100%
Bagri Constructio n Private Limited Applicant/ Transferor Company No.2	4	100%	Nil	Not Applicable	2	100%
Catvision Communic ation Private Limited Applicant/ Transferor Company No.3	4	100%	Nil	Not Applicable	2	100%
Shreshth Logistics Private Limited Applicant/ Transferor Company No.4	4	100%	Nil	Not Applicable	3	100%
Dharti Oil Services	4	100%	Nil	Not Applicable	2	100%

Private Limited Applicant/ Transferor Company no.5						
Amit Lubricants Private Limited Applicant No.6/Trans feree Company	6	100%	Nil	Not Applicable	5	100%

14. That all the Shareholders of the Applicant Companies have given their 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

15. That all the Unsecured Creditors of the Applicant Companies have given their 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening meetings of unsecured in respect of all the Applicant Companies is dispensed with.

16. Since there are no Secured Creditors in any of the Applicants Company, the requirement of convening their meetings does not arise.

17. The Application is **allowed** in the aforesaid terms.

—Sd—

(L. N. GUPTA)
MEMBER (T)

—Sd—

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)